

the trust he would be liable for a breach of contract, as for a simple contract debt (a). If he execute the deed, it is not necessary, in order to make it a covenant, that there should be the word *covenant*, but the word *agree* and *declare* (b), or the word *declare* alone will suffice (c). There is no magic in words, and it is simply a question of intention whether the execution of the deed was for the purpose of creating a specialty debt or *alio intuitu* (d). In the case of a trustee covenanting for himself and his *heirs*, a remedy lay at *common law* against the *heir* in respect of estates descended; and by 3 W. & M. c. 14, the like remedy was given against the *devisee* of the debtor: but this was only where the specialty would have supported an *action of debt*, as in the case of a bond, and did not apply to a *covenant*, by which, not a debt, was created, but *damages* were recoverable (e); but 11 G. 4, & 1 W. 4, c. 47, perfected the remedy by extending it to the case of a covenant [or other specialty. By the Conveyancing and Law of Property Act, 1881, unless a contrary intention is expressed, a covenant and a contract under seal, and a bond or obligation under seal, made, or implied by virtue of the Act, since the 31st December, 1881, though not expressed to bind the heirs, operate in law to bind the heirs and real estate, as well as the executors and administrators, and personal estate, as if heirs were expressed (f). The effect of this section seems to be to extend the remedy given by 11 G. 4, & 1 W. 4, c. 47, to all specialty creditors, whether the heirs are named or not. By 3 & 4 W. 4, c. 104, it was] declared that the lands of a debtor should be liable to *all his debts*, whether on simple contract or on specialty;

Bryan, 5 Ir. Ch. Rep. 119; Marryat v. Marryat, 6 Jur. N. S. 572; Courtney v. Taylor, 6 M. & Gr. 851; Wynch v. Grant, 2 Drew, 312. It appears from the latter case, that in Adey v. Arnold, the trustee had executed the deed, a circumstance not mentioned in the report of Adey v. Arnold.

(a) Richardson v. Jenkins, 1 Drew. 477; Vincent v. Godson, 1 Sm. & G. 384.

(b) Westmoreland v. Tunnicliffe, W. N. 1869, p. 182.

(c) Richardson v. Jenkins, 1 Drew. 477; and see Saltoun v. Houston, 1 Bing. N. C. 433; Cummins v. Cummins, 3 Jones & Lat. 64; 8 Ir. Eq. Rep. 723; Jenkins v. Robertson, 1 Eq. Rep. 123.

(d) Isaacson v. Harwood, 3 L. R. Ch. App. 225.

(e) Wilson v. Knubley, 7 East. 127. [(f) 44 & 45 Vict. c. 41, s. 59.]